

14. Emergency Provisions

Contents

14.1 Introduction	1
14.2 The Constitution mentions three types of emergencies	1
14.3 National Emergency - Article 352	2
14.4 Parliamentary Approval and Duration - Article 352	2
14.5 President's Rule – Article 356	3
14.6 Parliamentary Approval and Duration (Article 356)	4
14.7 Financial Emergency (Article 360)	5
14.8 Parliamentary Approval and Duration (Financial Emergency)	5

14.1 Introduction

- The rules about emergencies are written in Part 18 of the Constitution (Articles 352 to 360).
- National Emergency is in Article 352, and President's Rule is in Article 356.
- When there is an emergency, the Central Government gets all the power, and the State Governments come under its control.
- During this time, the system of power-sharing between the Centre and States (federal structure) becomes unitary—the Centre controls everything—without officially changing the Constitution.

14.2 The Constitution mentions three types of emergencies

1. National Emergency

- It happens because of war, external attack, or armed rebellion (Article 352).
- It is called a National Emergency.
- The Constitution uses the term 'proclamation of emergency' for this kind of situation.

2. President's Rule

- It happens when the State Government fails to work according to the Constitution (Article 356).
- It is called President's Rule, State Emergency, or Constitutional Emergency.

- The Constitution doesn't use the exact word 'emergency' for this situation.

3. Financial Emergency

- It happens when India faces financial problems or a credit crisis (Article 360).
- This type of emergency has never been declared in India.

14.3 National Emergency - Article 352

Article 352 of the Indian Constitution talks about National Emergency.

- The President can declare a National Emergency if India or any part of it is in danger because of war, external attack, or armed rebellion.
- The President can do this even before an actual attack happens if he believes there is a real danger.
- The President makes this decision based on a written request from the Union Cabinet (the Prime Minister and ministers).
- The Emergency must be approved by the Parliament within one month of being declared.
- Once approved, it lasts for six months and can be extended again by Parliament.
- To extend it, at least two-thirds of the members of both Houses of Parliament must agree.
- During a National Emergency, the Central Government gets more power. It controls even the subjects normally handled by the State Governments.
- The State List powers move temporarily to the Union Government under Article 250.
- Fundamental Rights (like personal freedoms) under Articles 19, 20, and 21 can be limited or stopped.
- People cannot go to the Courts to protect Fundamental Rights during an Emergency.
- India has had a National Emergency three times:
 1. In 1962 (China war)
 2. In 1971 (Ind-Pak war)
 3. In 1975 (internal political issues)

14.4 Parliamentary Approval and Duration - Article 352

- The Parliament must approve the National Emergency within one month of its declaration. (Before the 44th Amendment in 1978, this time limit was two months.)
- If the Lok Sabha is dissolved when the Emergency is declared, then:

- The Rajya Sabha must approve it first.
 - The Lok Sabha must approve it within 30 days after it meets again.
 - Once approved by both Houses, the Emergency stays for six months.
 - It can be extended further if Parliament approves it again.
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- The 44th Amendment (1978) added this rule for regular approval of Emergency.
 - Before this, an Emergency could continue as long as the Cabinet (Executive) wanted, if the Lok Sabha was dissolved.
 - Now, even if the Lok Sabha is dissolved, the Emergency can continue only for 30 days after the new Lok Sabha meets, unless it is approved again.
 - To continue or extend the Emergency, both Houses must pass it by a special majority:
 - More than half of the total members must agree.
 - At least two-thirds of the members who are present and voting must support it.
 - This rule was also introduced by the 44th Amendment (1978).

14.5 President's Rule – Article 356

- It is also called State Emergency.
- If the President, based on the Governor's report or his own judgment, feels that the State Government cannot work according to the Constitution, he can declare President's Rule.

When and How It Can Be Declared:

- The President can declare it if:
 - The Governor reports that the situation in the state is not normal.
 - Or, even without a report, if the President thinks the situation demands it.
- This happened in 1991, when President Venkataraman declared President's Rule in Tamil Nadu without the Governor's report.

Judicial Review:

- The 42nd Amendment made the State Emergency free from court review.
- But the 44th Amendment later allowed courts to check if the President's Rule was valid.

Parliamentary Approval and Duration:

- It must be approved by both Houses of Parliament within two months.

- If not approved, it ends automatically.
- Once approved, it lasts for six months at a time.
- It can be extended further, but only if:
 - The Election Commission confirms that elections in the state are not possible.

Consequences of President's Rule:

- The President takes over the executive powers of the state.
- The Governor runs the state on behalf of the President.
- The Parliament makes laws and passes the state budget.
- The High Court continues to work normally.
- The President can also make ordinances(temporary laws) for the state.

Important Notes:

- The Union Government (Central Government) has full control over the state during this period.
- President's Rule (Article 356) is used when a state government fails to function properly according to the Constitution.

14.6 Parliamentary Approval and Duration (Article 356)

Parliamentary Approval and Duration (Article 356 – President's Rule):

- When the President's Rule is declared, it must be approved by both Houses of Parliament within two months from the date it is issued.
- If the Lok Sabha is dissolved during that time, the Rajya Sabha can approve it first.
Then, after the new Lok Sabha is formed, it must approve it within 30 days of its first meeting.
- Once approved, the President's Rule continues for six months.
- It can be extended for a maximum of three years, but it must be approved every six months by Parliament.
- If the Lok Sabha is dissolved again during the six-month period, the same rule applies — the Rajya Sabha can approve it first, and the Lok Sabha must approve it within 30 days after it meets again.

14.7 Financial Emergency (Article 360)

- The President can declare a Financial Emergency if he believes that the financial stability or credit of India or any part of its territory is in danger.
- It must be approved by both Houses of Parliament within two months of being declared.
- If not approved, it ends automatically.
- During a Financial Emergency, the Central Government gets more control over the financial matters of the states.

Effects of Financial Emergency:

- The President can:
 - Give directions to any state on how to manage its finances.
 - Require that all money bills or financial bills passed by the state be first approved by the President.
 - Reduce the salaries of all or any class of government employees.
 - This includes judges of the High Court and Supreme Court.
- So far, no Financial Emergency has ever been declared in India.

14.8 Parliamentary Approval and Duration (Financial Emergency)

- The declaration of a Financial Emergency must be approved by both Houses of Parliament within two months from the date it is issued.
- If the Lok Sabha is dissolved during the two-month period, the Financial Emergency is not yet approved.
- Then, the Financial Emergency continues for 30 days after the new Lok Sabha meets.
- This is only if the Rajya Sabha has already approved the Financial Emergency.
- Once both Houses of Parliament approve the Financial Emergency, it continues indefinitely until it is cancelled by the President.

This means:

1. There is no fixed time limit for how long a Financial Emergency can last.
2. Parliament does not need to approve it again and again.